

TENTATIVE RULINGS

FOR: August 05, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBlla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

**** All matters originally set in Dept. B will be heard in Dept. A ****

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Estate of Martha Camacho

25PR000076

STATUS HEARING RE: FINAL DISTRIBUTION

APPEARANCE REQUIRED. Pursuant to Probate Code section 12200, a personal representative is required to either petition for an order for final distribution of the estate or make a report of status of administration not later than one year after the date of issuance of letters. There is no petition for final distribution or status report on file. Appearance is required to show the condition of the estate, the reasons why the estate cannot be distributed and closed, and an estimate of time needed to close administration of the estate. (Prob. Code, § 12202, subd. (a).)

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Estate of Charles Richard Kepner

25PR000144

STATUS HEARING RE: FINAL DISTRIBUTION

TENTATIVE RULING: On August 3, 2026, Administrators filed a Status Report and set the matter for hearing on August 21, 2026. The instant hearing is, therefore, MOOT.

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Estate of Connie Ann Alric

25PR000148

STATUS HEARING RE: FINAL DISTRIBUTION

TENTATIVE RULING: In light of the August 11, 2026 hearing on the Petition for Final Distribution filed June 25, 2026, the present status hearing is VACATED as moot.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Fedex Corporate Services, Inc. v. Wine Specialty Services LLC

23CV0001063

PLAINTIFF’S MOTION TO ENFORCE SETTLEMENT

TENTATIVE RULING: The matter is CONTINUED to August 19, 2026, at 8:30 a.m. in Dept. B to allow Plaintiff to address the following issue.

The Memorandum and Declaration of Long K. Bui (“Bui Decl.”) show the requested judgment as \$332,915.17, made up of \$236,277.73 principal, \$531.40 court costs, and \$96,106.96 interest. (Mem., 5:12; Bui Decl., ¶ 6.) These amounts are consistent with the Stipulation for Entry of Judgment, less the total amount paid by Defendant; *however*, the Stipulation shows that the parties also agreed to an amount of \$1,200 in attorney fees. (See Bui Decl., Exh. A.) With the attorney fees, the total judgment would be \$334,116.09. Plaintiff does expressly disclaim, much less address, the attorney fees category. Thus, the Court is concerned that its omission was in error.

If an error, Plaintiff is directed to file an Amended Memorandum and Declaration correcting that error. If not an error, Plaintiff is directed to file a Supplemental Declaration to explain/confirm the discrepancy. Plaintiff’s further briefing shall be filed and served by August 12, 2026.

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Reed Woodson v. City of St. Helena et al

26CV000379

PETITIONER’S MOTION FOR JUDGMENT ON THE PEREMPTORY WRIT OF ADMINISTRATIVE MANDATE

APPEARANCE REQUIRED.

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In The Matter of Adan Hernandez De Leon

26CV001325

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

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****at 9:30 a.m.****

In The Matter of Vivian L. Manfree Revocable Trust

25PR000179

MOTION TO ENFORCE INTERIM SETTLEMENT AGREEMENT [Filed 5/13/26]

TENTATIVE RULING: The Motion is DENIED.

A. PROCEDURAL MATTERS

Petitioner Lizbeth Manfree (“Liz”)¹ moves, pursuant to Code of Civil Procedure section 664.6, to enforce terms in accordance with an Interim Agreement between Liz and Respondents Debra Manfree (individually and as Trustee) and Amber Manfree, attached as Exhibit A to the Declaration of David G. Knitter (“Knitter Decl.”). Specifically, Liz requests an order (1) requiring Debra and Amber to provide a complete and accurate accounting of any and all accounts of Vivian Manfree for the time period November 1, 2019 to March 9, 2025 (Vivian’s date of death), (2) awarding costs and fees to Liz to be paid by Debra and Amber, and (3) requiring back up documentation for all transactions including but not limited to receipts, invoices, and 1099s.

The motion was noticed for hearing on June 10, 2026. The Court posted a Tentative Ruling the day prior stating that: “The relief requested in the present Motion—i.e., to compel Respondents to account—is the same relief requested in the First Amended Petition, which ordinarily goes to an evidentiary hearing. Moreover, the subject matter of the present Motion—i.e., whether or not Respondents’ accounting is code-compliant—is a matter that generally comes on for an evidentiary hearing after formal objections to the accounting are raised and settled. Thus, the Court does not intend to provide a Tentative Ruling on this Motion; rather, the continued hearing will be a case management conference on both the First Amended Petition and the present Motion.” The matter was heard as a Case Management Conference on June 10 and was continued to July 23 for further case management.

¹ Individuals are referred to herein by their first or last names for ease of reference and to avoid confusion. No disrespect is intended to any person or party.

At the hearing on July 23, Liz’s counsel requested a ruling on the Motion specifically as to (1) whether the confidentiality of mediation precludes evidence of the settlement agreement; and (2) whether Debra and Amber failed to comply with all the agreed upon accountings. (Liz’s counsel acknowledged that an accounting of Trust assets had been provided, but that Debra and Amber have failed to provide accountings for the non-Trust assets in Vivian’s name (i.e. checking accounts, savings accounts, the Charles Schwab account, the Franklin Templeton account and/or the MetLife account).)

The Court now issues its Tentative Ruling on the substance of the Motion as follows.

B. LEGAL STANDARD

“If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., § 664.6, subd. (a).)

C. DISCUSSION

Liz argues that “[i]f the court determines that the Interim Settlement Agreement is binding, the court can then enforce and interpret the agreement stipulated to by the parties and all of its terms. . . . and enter a judgment requiring Debra and Amber to account for all accounts of Vivian Manfree.” (Mem., 6:5-6, 13-14.)

Notably, section 664.6 allows two things: the court may (1) while the litigation is pending, “enter judgment pursuant to the terms of the settlement [of the case, or part thereof]” or (2) after dismissal of the case without prejudice, “enforce the settlement until performance in full of the terms of the settlement.” (*Ibid.*) Here, the case has not been dismissed; rather, the litigation is still pending. In this procedural landscape, the Court is only authorized to enter judgment pursuant to the terms of the settlement of the case, or part thereof, under section 664.6, subdivision (a).

However, entering *judgment* pursuant to the terms of the Interim Agreement—assuming *arguendo* the agreement is valid and enforceable and not subject to confidentiality provisions—is not possible where it does not *settle* any matter currently pending before the Court. The Interim Agreement does not reference the operative petition before the Court or state that the petition, or a portion thereof, is resolved by way of the Interim Agreement. (Knitter Decl., Exh. A.) Rather, the contents of the Interim Agreement confirm that it is essentially a tolling agreement. (*Ibid.*; see also Opp., 15:9-15.) Moreover, as Liz concedes, the subject of the Interim Agreement “was intended to set the stage for a potential settlement of all claims” (Mem., 5:16-18.) An agreement to do something to prepare for settlement is not a settlement agreement.

This point is raised by Debra and Amber in Opposition, where they state that the terms of the Interim Agreement themselves, and the fact that neither Debra nor Amber had yet appeared in the case at the time of signing the Interim Agreement, confirm that “the parties were not resolving the case. They suspended it while they tried to.” (Opp., 15:14-15, 15:24-16:10.)

In Reply, Liz attempts to show that the Interim Agreement is a valid agreement without meaningfully addressing or rebutting Debra’s and Amber’s contention that it is not an agreement “for settlement of the case, or part thereof” required by section 664.6, subdivision (a).

Based on the foregoing, the Court is simply without authority to enter judgment in these circumstances. As such, the Motion is DENIED.

This ruling renders it unnecessary for the Court to consider either questions of confidentiality raised by Debra and Amber in Opposition, or Debra and Amber’s compliance with the Interim Agreement.